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Jane Kaushik Judgment: A Paradigm Shift Towards Substantive Equality for Transgender Persons in India

The Supreme Court judgment in [Jane Kaushik v. Union of India \(2025 INSC 1248\)](#) represents a landmark and comprehensive affirmation of the constitutional and statutory rights of transgender persons. It emphasizes the importance of implementing principles of equality, dignity, and non-discrimination through proactive measures such as reasonable accommodation and effective grievance redressal mechanisms.

Facts of the Case:

The petitioner, Ms. Jane Kaushik, a transgender woman, faced discrimination and humiliation during her attempts at employment in private educational institutions—First School and Second School—culminating in her illegal termination. Her grievances highlight systemic failures in implementing the [Transgender Persons \(Protection of Rights\) Act, 2019](#) (“2019 Act”), and its Rules. Notably, there was an absence of designated grievance redressal mechanisms, inadequate administrative action, and persistent societal stigma. The case underscores the disconnect between progressive legal frameworks and their enforcement, revealing structural and attitudinal barriers faced by transgender individuals.

Constitutional and Statutory Principles:

The Court reaffirmed that rights to equality, dignity, and non-discrimination are fundamental, expansive, and inclusive of gender identity, as established in [NALSA \(2014\)](#). It emphasized that Articles 14, 15, 17, 19, and 21 impose positive obligations on both the State and private actors to eliminate systemic disadvantages and societal stereotypes. The judgment underscores that substantive equality requires affirmative action, reasonable accommodation, and the dismantling of deep-seated prejudices.

The Court further clarified that although the concept of reasonable accommodation is not explicitly articulated in the 2019 Act, it finds strong support within the constitutional framework. Drawing from international jurisprudence—Canada, USA, EU—it explained that reasonable accommodation entails a positive obligation to modify policies, practices, and environments to prevent discrimination and promote inclusion.

Addressing Discrimination and Legislative Gaps:

A significant contribution of this judgment is its detailed analysis of legislative omissions—both absolute and relative—and their role in perpetuating discrimination. The Court recognized that merely enacting rights without effective enforcement mechanisms, institutional frameworks, or proactive policies results in systemic exclusion. It highlighted that legislative failures to formulate comprehensive policies, establish grievance redressal bodies, and enforce anti-discrimination norms violate constitutional rights, constituting legislative omissions warranting judicial intervention.

The Court critiqued the inertia of the Union and State Governments—delayed policy formulation, lack of rules, and absence of complaint mechanisms—serving as a call for accountability. It affirmed that the judiciary must step in where legislative inaction impairs constitutional guarantees.

Horizontal and Indirect Horizontal Application of Rights:

The judgment affirms that the 2019 Act effectively operationalizes the horizontal application of fundamental rights—extending constitutional guarantees against discrimination to private institutions. This aligns with jurisprudence such as [Kaushal Kishore](#), emphasizing that the obligation to uphold equality and dignity extends beyond public law into private spheres like employment, education, health, and social participation.

International and Comparative Law Insights:

The Court’s detailed exposition of international jurisprudence—Canadian, American, European—on reasonable accommodation and indirect discrimination enriches the Indian understanding of equality law. It underscores that societal prejudice often manifests through indirect discrimination—facially neutral policies that perpetuate systemic disadvantage—necessitating a nuanced, intersectional, and transformative approach.

Four-Dimensional Framework for Substantive Equality:

A pioneering aspect is the Court’s adoption of [Sandra Fredman’s four-dimensional model](#)—redressing disadvantage, combating stereotypes, enhancing voice and participation, and accommodating difference—to interpret and operationalize substantive equality within the Indian context. The Court recognized that legal recognition alone is insufficient; active measures must challenge societal stereotypes, enable participation, and foster structural change.

Guidelines and Directions:

1. *Implementation Deficit:* The Court reprimanded the Union and State Governments for decades of failure to enact and enforce rules, establish grievance mechanisms, and develop inclusive policies mandated by the [2019 Act](#) and Rules. Rights on paper are meaningless without effective enforcement.
2. *Positive Obligation of the State:* The judgment emphasizes that the State’s obligation extends beyond non-discrimination to include affirmative measures—sensitization, policy development, infrastructural modifications, and institutional support—to realize transgender rights.
3. *Legal Doctrine of Omissive Discrimination:* Recognizing that legislative or administrative silence can be as harmful as active discrimination, the Court employs a transformative constitutional approach, judicially filling legislative gaps to prevent systemic marginalization.

4. *International and Constitutional Synergy*: The judgment aligns domestic law with international standards on equality, non-discrimination, and reasonable accommodation, advocating for a rights-based, intersectional, and transformative jurisprudence.

5. *Holistic Approach*: By integrating constitutional principles, statutory mandates, and international jurisprudence, the Court charts a comprehensive roadmap requiring proactive, inclusive, and intersectional measures to uphold the dignity and equality of transgender persons.

Conclusion:

This judgment marks a watershed in Indian constitutional jurisprudence, affirming that rights are dynamic, enforceable, and require systemic and societal transformation. It mandates that the State and private institutions move beyond mere formal compliance, adopting substantive measures—reasonable accommodation, sensitization, participation, and structural change—to realize constitutional promises of dignity, equality, and non-discrimination for transgender persons. It exemplifies judicial leadership in advancing a rights-based, intersectional, and transformative approach to social justice, shifting the focus from legal recognition to meaningful inclusion.